

ELIZABETH II



1972 CHAPTER xix

An Act to confirm a Provisional Order under the Private
Legislation Procedure (Scotland) Act 1936, relating to
Culag (Lochinver) Pier. [27th July 1972]

WHEREAS the Provisional Order set forth in the schedule
hereunto annexed has been made by the Secretary of
State under the provisions of the Private Legislation
Procedure (Scotland) Act 1936, and it is requisite that the said 1936 c. 52.
Order should be confirmed by Parliament:

Be it therefore enacted by the Queen's most Excellent Majesty,
by and with the advice and consent of the Lords Spiritual and
Temporal, and Commons, in this present Parliament assembled,
and by the authority of the same, as follows:—

1. The Provisional Order contained in the schedule hereunto
annexed is hereby confirmed. Confirmation
of Order in
schedule.

2. This Act may be cited as the Culag (Lochinver) Pier Order Short title.
Confirmation Act 1972.

SCHEDULE

CULAG (LOCHINVER) PIER

Provisional Order to authorise the County Council of Sutherland to carry out works for the extension and improvement of the Culag (Lochinver) Pier in the parish of Assynt in the county of Sutherland and to borrow money; and for other purposes.

Whereas by a Disposition granted in favour of the Sutherland County Council (hereinafter referred to as "the County Council") by Assynt Trading Company Limited dated the nineteenth and twenty-third both days of October and recorded in the Division of the General Register of Sasines applicable to the county of Sutherland on the fourteenth day of November all in the year One thousand nine hundred and fifty-three the undertaking of Culag (Lochinver) Pier as defined by the Culag (Lochinver) Pier Order 1937 was conveyed to and vested in the County Council:

And whereas it is expedient that the County Council should be authorised to carry out the works hereinafter described for the extension and improvement of the existing pier and to borrow money for the purposes of the said works and of the undertaking:

And whereas it is expedient that the further powers mentioned in this Order should be conferred on the County Council:

And whereas estimates have been prepared by the County Council in relation to the following purposes in respect of which they are to be authorised to borrow money and such estimates are as follows:—

Extension of existing pier partly of solid and partly				
of open work construction	...	...	...	£245,000
Erection of fish market building	...	...	...	£25,000

And whereas plans and sections showing the lines, situations and levels of the works to be constructed under the powers of this Order were duly deposited with the sheriff clerk of the county of Sutherland and such plans and sections are respectively called the deposited plans and the deposited sections:

And whereas altered plans showing substituted lines and situations of the works to be constructed under the powers of this Order were deposited in the month of March, 1972, with the sheriff clerk of the county of Sutherland and such further plans are hereinafter referred to as the substituted plans:

And whereas the purposes aforesaid cannot be effected without an Order confirmed by Parliament under the provisions of the Private Legislation Procedure (Scotland) Act 1936:

1936 c. 52.

Now therefore in pursuance of the powers contained in the last-mentioned Act the Secretary of State orders, as follows:—

PART I

PRELIMINARY

Short title
and citations.

1.—(1) This Order may be cited as the Culag (Lochinver) Pier Order 1972.

(2) The Culag (Lochinver) Pier Order 1937 and the Culag (Lochinver) Pier Order 1967 and this Order may be cited together as the Culag (Lochinver) Pier Orders 1937 to 1972.

(3) Except so far as may be inconsistent with or repugnant to the purposes of this Order, the Culag (Lochinver) Pier Order 1937 and the Culag (Lochinver) Pier Order 1967 and this Order shall be construed and read together as one Order.

PART I
—cont.

2.—(1) In this Order, unless the context otherwise requires, the following words and expressions have the meanings hereby respectively assigned to them:—

“commencement of this Order” means the date of the Act confirming this Order;

“County Council” means the County Council of the county of Sutherland;

“deposited plans” means the plans deposited in connection with this Order;

“deposited sections” means the sections deposited in connection with this Order;

“existing pier” means the pier at Lochinver situated in the parish of Assynt in the county of Sutherland known as Culag (Lochinver) Pier and the land, buildings, works, plant, property and conveniences connected therewith or any part thereof as the case may be as the same were existing at the commencement of this Order;

“fish market” means the fish market authorised by this Order;

“level of high water” means the level of mean high-water springs;

“limits of deviation” means the limits of deviation shown on the substituted plans;

“pier” means the existing pier and the works;

“pier undertaking” means the undertaking of the County Council in connection with the existing pier together with all lands for the time being belonging to or held or used or enjoyed by the County Council and includes the works;

“substituted plans” means the plans deposited in connection with this Order in the month of March, 1972;

“tidal work” means so much of any work authorised by this Order as is on, under or over tidal waters or tidal lands below the level of high water;

“works” means the works authorised by this Order or as the case may require any part thereof.

(2) The Interpretation Act 1889 shall apply for the interpretation of this Order as it applies for the interpretation of an Act of Parliament.

(3) Unless the context otherwise requires, any reference in this Order to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by any subsequent enactment, including this Order.

PART II WORKS

3. Subject to the provisions of this Order, the County Council may at Lochinver in the parish of Assynt and county of Sutherland and on the foreshore and bed of the sea adjacent thereto and in the

Power to
construct works.

PART II
—cont.

situations and lines and within the limits of deviation and according to the levels shown on the substituted plans and on the deposited sections construct and maintain the works hereinafter described, together with all necessary and proper works and conveniences connected therewith or incidental thereto, that is to say—

An extension of the existing pier partly of solid and partly of open construction commencing on the north-west face thereof and extending seaward in a north-westerly direction for a distance of 175 feet or thereabouts and there terminating and constructed mainly of prestressed concrete piles, flat slab reinforced concrete deck, steel sheet piling and granular infilling and the erection over part thereof of a fish market building.

Subsidiary
works.

4. Subject to the provisions of this Order, the County Council may from time to time for the purposes of or in connection with the works execute, place and keep either temporarily or permanently within the limits of deviation on, under or over tidal waters or tidal lands below the level of high water all such caissons, cofferdams, piles, quays, walls, abutments, embankments, booms, dolphins, access works, fenders, mooring posts, pontoons, cranes, winches, gantries, conveyors and stagings and other works as they may find necessary or expedient.

Maintenance
and improve-
ment of works.

5.—(1) Subject to the provisions of this Order, the County Council may from time to time maintain, renew, enlarge, alter and reconstruct temporarily or permanently the works or any part thereof:

Provided that nothing in this section shall authorise the County Council to deviate laterally beyond the limits of deviation.

(2) Any electrical works or equipment constructed, used and maintained under this Order shall be so constructed, used and maintained that any electricity generated or conveyed by or used in or in connection with any such works or equipment does not cause interference (whether by induction or otherwise) with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Post Office or with telecommunication by means of any such line.

1878 c. 76.

Power to
deviate.

6. Subject to the provisions of this Order, in constructing the works the County Council may deviate laterally from the lines or situations thereof shown on the substituted plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to any extent not exceeding 10 feet upwards and to such extent downwards as may be found necessary or convenient.

Fine for
obstructing
work.

7.—(1) Any person who wilfully obstructs any person acting under the authority of the County Council in setting out the lines of the works, or who damages, moves or removes any pole, stake, station point or bench mark established for the purpose of such setting out shall for every such offence be liable to a fine not exceeding five pounds and shall in addition be liable to repay to the County Council any expenses incurred by them in making good such damage.

(2) Proceedings for any offence under this section or for the recovery of any fine thereunder may be brought in any court of summary jurisdiction.

PART II
—cont.

8.—(1) A tidal work shall not be constructed, reconstructed, renewed, enlarged or altered except in accordance with plans and sections approved by the Secretary of State and subject to any conditions and restrictions imposed by the Secretary of State before the work is begun.

Tidal works not to be executed without approval of Secretary of State.

(2) If a tidal work is constructed, reconstructed, renewed, enlarged or altered in contravention of this section or of any condition or restriction imposed under this section—

(a) the Secretary of State may by notice in writing require the County Council at their own expense to remove the tidal work or any part thereof and restore the site thereof to its former condition; and if on the expiration of thirty days from the date when the notice is served upon the County Council they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice; or

(b) if it appears to the Secretary of State urgently necessary so to do, he may himself remove the tidal work or part of it and restore the site to its former condition;

and any expenditure incurred by the Secretary of State in so doing shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

9. The Secretary of State may at any time if he deems it expedient order a survey and examination of a tidal work constructed by the County Council or of the site upon which it is proposed to construct the work and any expenditure incurred by the Secretary of State in any such survey and examination shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

Survey of tidal works.

10.—(1) In case of injury to or destruction or decay of a tidal work or any part thereof, the County Council shall forthwith notify the Commissioners of Northern Lighthouses and shall lay down such buoys, exhibit such lights and take such other steps for preventing danger to navigation as the Commissioners of Northern Lighthouses shall from time to time direct.

Provision against danger to navigation.

(2) If the County Council fail to comply in any respect with the provisions of this section, they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

11.—(1) Where a tidal work is abandoned, or suffered to fall into decay, the Secretary of State may by notice in writing require the County Council at their own expense either to repair and restore the work or any part thereof, or to remove the work and restore the site thereof to its former condition, to such an extent and within such limits as the Secretary of State thinks proper.

Abatement of works abandoned or decayed.

(2) Where a work authorised by this Order and consisting partly of a tidal work and partly of works on, or over, land above the level of high water is abandoned or suffered to fall into decay and that part

PART II
—cont.

of the work on or over land above the level of high water is in such condition as to interfere or to cause reasonable apprehension that it may interfere with the right of navigation or other public rights over the foreshore, the Secretary of State may include that part of the work or any portion thereof, in any notice under this section.

(3) If, on the expiration of thirty days from the date when a notice under this section is served upon the County Council they have failed to comply with the requirements of the notice, the Secretary of State may execute the works specified in the notice and any expenditure incurred by him in so doing shall be a debt due from the County Council to the Crown and shall be recoverable accordingly.

Lights on
tidal works
during
construction.

12.—(1) The County Council shall at or near a tidal work during the whole time of the construction, reconstruction, renewal, enlargement or alteration thereof exhibit, every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Secretary of State shall from time to time direct.

(2) If the County Council fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Permanent
lights on
tidal works.

13.—(1) After the completion of a tidal work, the County Council shall at the outer extremity thereof exhibit every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Commissioners of Northern Lighthouse shall from time to time direct.

(2) If the County Council fail to comply in any respect with a direction given under this section they shall be guilty of an offence and liable on summary conviction to a fine not exceeding one hundred pounds and on conviction on indictment to a fine.

Power to
dredge.

14. The County Council may from time to time deepen, dredge, scour, cleanse, alter and improve the bed and foreshore within the limits of deviation and any material taken up or collected in the course of such operations shall be the property of the County Council and may be used, sold, removed, deposited or otherwise disposed of as the County Council may think fit:

Provided that no such material shall be laid down or deposited in any place below the level of high water except in such position as the Secretary of State may approve and subject to such conditions or restrictions as he may impose.

Works to form
part of pier
undertaking
and
application of
byelaws.

15.—(1) The works shall for all purposes form part of the pier undertaking.

(2) All byelaws and regulations for the time being in force relating to the pier undertaking shall as far as applicable apply to the works and may be enforced by the County Council accordingly.

(3) The works shall be deemed for all purposes to be within the parish of Assynt and in the county of Sutherland.

PART II
—cont.

PART III

BORROWING

16. The power to borrow money conferred on county and town councils by section 21 of the Harbours, Piers and Ferries (Scotland) Act 1937 shall extend and apply with respect to the works, and with regard to the exercise by the County Council of the powers conferred on them by this Order, in the same way as if the works were works authorised by a Provisional Order made under section 4 of the said Act of 1937, and as if the exercise of the powers conferred on the County Council by this Order were purposes of the said Act of 1937.

Power to borrow money for purposes of works, etc.
1937 c. 28.

17. The County Council in addition to any other powers of borrowing which they now have may, with the sanction of the Secretary of State, borrow such sums of money as may be necessary for—

Further borrowing powers.

(a) the general purposes of the pier undertaking;

(b) the payment of the costs, charges and expenses of, and incidental to the preparing for, obtaining and confirming of this Order or otherwise in relation thereto:

Provided that money so borrowed for purpose (a) shall be repaid within such period as the Secretary of State may determine and that money so borrowed for purpose (b) shall be repaid within five years from the commencement of this Order.

18. All moneys borrowed by the County Council under this Order shall be applied only to the purposes for which such sums are authorised to be borrowed and to which capital is properly applicable.

Application of moneys borrowed.

19. It shall not be lawful to exercise the powers of borrowing conferred by this Order, other than the power of borrowing to pay the costs, charges and expenses of this Order, except in compliance with the provisions of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946, or of section 259 of the Local Government (Scotland) Act 1947.

Saving for control on borrowing.

1946 c. 58.

1947 c. 43.

PART IV

MISCELLANEOUS

20. The County Council may in connection with the pier undertaking provide, operate and maintain a fish market for the sale of fish either within the fish market building to be constructed under the powers of this Order or at any convenient place in or adjacent thereto and on any lands belonging to the County Council or which they may acquire by agreement with all such appliances and fittings as they may deem necessary and suitable for the purposes thereof and they may

Power to provide, operate and maintain fish market.

PART IV
—cont.

divide or allocate any parts or part thereof into stalls or other defined or limited places and make provision for the cleansing and general management thereof, and may provide and operate in connection with the fish market such services and facilities as may be requisite or expedient and they shall have the sole operation, superintendence and management thereof and they may fix and regulate the hours during which the said fish market or any part thereof shall be open.

Power to
make charges.

21. The County Council may demand, take and recover such reasonable charges, rates and dues as they think fit for the use of the fish market and for services and facilities provided by them in relation thereto.

Byelaws.
1847 c. 27.
1937 c. 28.

22. The purposes for which byelaws may be made under section 83 of the Harbours, Docks and Piers Clauses Act 1847 as applied to the undertaking, being a marine work, by section 10 of the Harbours, Piers and Ferries (Scotland) Act 1937, shall extend to any of the following:—

- (a) for regulating the use of the fish market and the stalls and offices therein;
- (b) for regulating the conduct of persons working in the fish market or resorting thereto;
- (c) for preventing nuisance at the fish market.

Officer for fish
market.

23. The County Council may appoint such person or persons as they think fit to superintend the traffic within the fish market and to carry out the regulations, byelaws and orders of the County Council thereat.

Power to lease
fish market
and enter
into
agreements.

24. The County Council may for such consideration and upon such terms and conditions and subject to such restrictions and for such period as they think fit sell, feu, lease, excamb or otherwise dispose of the whole or any part of the lands which from time to time form the fish market and may carry into effect agreements with respect to any offices, stalls and ancillary buildings in connection therewith.

Crown rights.

25. Nothing in this Order shall affect prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing herein contained shall authorise the County Council to take, use or in any way interfere with any portion of the shore or bed of the sea or any river, channel, creek, bay or estuary or any land, heritages, subjects or rights of whatsoever description—

- (a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or
- (b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

26. The provisions of the Town and Country Planning (Scotland) Acts 1947 to 1969, and any restrictions or powers thereby imposed or conferred in relation to land shall apply and may be exercised in relation to any land notwithstanding that the development thereof is or may be authorised or regulated by or under this Order.

PART IV
—cont.

Saving for
town and
country
planning.

27. All costs, charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall be paid by the County Council.

Costs of
Order.

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Culag (Lochinver) Pier Order Confirmation Act 1972

CHAPTER xix

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CULAG (LOCHINVER) PIER

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